

Lecture 1: Introduction to Constitutional Law

Chapters A, B & C (pp. 1-23)

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Study Notes

CHAPTER A: INTRODUCTION

Remember

- A **constitution** is a set of fundamental principles and rules according to which a state is governed.
- **Constitutional law** refers to a set of basic legal principles and rules that define the nature, function and organization of a state.

The **Federal Constitution of the Swiss Confederation of 18 April 1999** features all essential elements of a modern constitutional state. It defines the main features of the state order, regulates the organization and workings of state organs, and assigns legal rights to individuals, thereby limiting state power.

As the basic legal order, the Constitution **takes precedence over all other legal norms** and may be modified only through a specific procedure. It is the supreme legal act forming the legal basis for all legislation.

1. Terms and Definitions

Remember

- The constitution in the **formal sense** encompasses all legal provisions enacted in the special enactment procedure of the constitution.
- The constitution in the **substantive sense** encompasses all essential legal principles concerning the nature of the state and its relation to individuals.

1.1 Constitution in the Formal Sense

- Focuses on the **form/process** in which legal norms are enacted
- Constitutional norms are enacted by a **special procedure** that differs from ordinary legislation
- This guarantees constitutional stability and higher democratic legitimacy
- In Switzerland, the Constitution consists of one single written document
- Can be totally or partially revised at any time (**Art. 192 para. 1 Cst**)
- All constitutional provisions require a **mandatory referendum** approved by the majority of the people AND the majority of the cantons (**Art. 140 para. 1 lit. a, Art. 142 para. 2, Art. 195 Cst**)

Hierarchy of Legislation

Level	Democratic Legitimacy
Federal Constitution	Highest (double majority)
Federal statutes	Optional referendum
Federal ordinances	No referendum
Cantonal constitutions	Cantonal procedures
Cantonal statutes	Cantonal procedures
Cantonal ordinances	No referendum
Communal legal acts	Communal procedures

1.2 Constitution in the Substantive Sense

- Focuses on the **content** of legal norms, not the form
- Encompasses all essential rules and fundamental principles on the nature of the state
- Includes both written and unwritten rules of constitutional dimension

- Fundamental principles: rules on **organization and powers, fundamental rights, procedures** for enactment, **competencies** in a federal state

1.3 Formal and Substantive Sense Compared

- In most states, the two senses correspond but may not be fully congruent
- Some formal provisions may be obsolete; some substantive principles may be unwritten
- The **Swiss Constitution of 1999** ('Nachfuhrung') aimed to eliminate provisions of minor importance and include previously unwritten principles
- In Switzerland, the formal and substantive senses now **coincide on essential points**
- Contrast: The **UK** has no constitution in the formal sense but does in the substantive sense; the **US** has case law (e.g., judicial review from Marbury v. Madison) as part of the substantive constitution

1.4 Flexibility of Constitutions

- **Rigid constitutions**: harder to change than ordinary legislation (e.g., US, Germany, Switzerland)
- **Flexible constitutions**: no special amendment procedure (e.g., UK)
- Switzerland: revision must only respect **mandatory norms of international law (jus cogens)** -- Art. 193 para. 4, Art. 194 para. 2 Cst
 - > **Jus cogens** includes: prohibition of genocide, slavery, torture, wars of aggression, and non-refoulement

2. Functions of a Constitution

2.1 Constitutional Conceptions

- **Instrumental conception**: only provisions on state organization
- **Substantive conception**: also defines core values, fundamental rights, state goals
- Most modern constitutions follow the **substantive conception**

2.2 Three Main Functions

- **Order and Organization**: specifies how the state is constituted, creates organs, describes powers (e.g., Art. 148 para. 1 Cst -- Federal Assembly as supreme authority)
- **Limits of Power and Guarantees of Freedom**: delimits state powers to guarantee fundamental freedoms; restricts abuse of power (Chapter One, Title Two of the Constitution)
- **Creation and Direction**: describes basic substantive goals; sets direction for future state action (e.g., Art. 2 para. 1 Cst -- liberty, rights, independence, security)

CHAPTER B: HISTORICAL DEVELOPMENT

Remember

- The Swiss Confederation dates back to an alliance of independent territories in **1291**.
- After French conquest: **Helvetic Republic** (1798-1803) as centralized state.
- **Mediation Act of 1803** restored cantons; **Restoration** (1814-1830) with 22 cantons.
- **Regeneration** (1830-1848): Sonderbund-Krieg 1847 led to the **Federal Constitution of 1848**.
- **Constitution of 1874** broadened federal powers; **Constitution of 1999** consolidated all developments.

1. Before 1798: The Old Confederation

- 1291: **Bundesbrief** between Uri, Schwyz, and Unterwalden -- mutual assistance pact
- Growth to eight members: Lucerne (1332), Zurich (1351), Glarus (1352), Zug (1352), Bern (1353)
- Five more: Fribourg & Solothurn (1481), Basel & Schaffhausen (1501), Appenzell (1513)
- Old Confederation = **league of sovereign states**, focused on defense and arbitration
- The **Diet (Tagsatzung)** was a council of ambassadors, not a central government; decisions required unanimity

2. Helvetic Republic (1798-1803)

- 1798: French invasion transformed Switzerland into a **unitary state**
- Territory divided into administrative cantons modeled on French departements
- Unitary structure quickly disintegrated into civil war
- French legacy: ideals of **equality, division of powers, popular sovereignty**

3. Mediation (1803-1813)

- **Napoleon** restored the Confederation via the **Mediation Act of 1803**
- 13 original cantons regained sovereignty; 6 new cantons: St. Gallen, Graubunden, Aargau, Thurgau, Ticino, Vaud
- 19 cantons total; limited confederate powers (foreign relations, defense)

4. Restoration (1814-1830)

- Three new territories: **Valais, Neuchatel, Geneva** (now 22 cantons)
- **Confederate Treaty of 7 August 1815**: loose framework for 22 cantons
- **Congress of Vienna (1815)**: recognized Swiss frontiers and **perpetual neutrality**

5. Regeneration (1830-1848)

- Liberal cantons drafted new constitutions with popular sovereignty and civil liberties
- 1845: Seven conservative Catholic cantons formed the secret **Sonderbund**
- 1847: Diet voted to abolish the alliance; **Sonderbund-Krieg** in November 1847

6. Federal Constitution of 1848

- Established Switzerland as a **federal state** of 19 cantons and 6 half-cantons
- Combined cantonal experience, French Revolution ideas, and elements from the **US Constitution**
- Centralized: foreign policy, customs, postal sector, currency
- Introduced: **bicameral parliament**, **Federal Council** of 7 members, **universal male suffrage**, **compulsory referendum** for constitutional amendments
- Revolutionary character: enacted despite the Confederate Treaty of 1815 requiring unanimity

7. Federal Constitution of 1874

- Driven by industrialization and demands for more centralization
- Introduced: **optional legislative referendum** (30,000 citizens or 8 cantons)
- New federal powers: private law, criminal law, unified army, single economic market
- Additional rights: economic freedom, free primary education, freedom of belief
- Established **Federal Supreme Court as a permanent institution**
- Created 'Public Law Appeal' -- challenge constitutionality of cantonal acts
- Limitation: Art. 113 required courts to apply federal statutes even if unconstitutional

8. Developments 1874-1999

- Additional federal powers: civil/criminal law (1898), social security, transportation, energy, environment
- **Women's suffrage (1971)**; proportional representation (1918)
- **Canton of Jura** created (1978)
- Trend toward interventionist and 'prevention state'
- Constitution became increasingly incoherent -- formal sense did not reflect substantive sense

CHAPTER C: SOURCES OF CONSTITUTIONAL LAW

Remember

- The **Federal Constitution of 18 April 1999** is the most important source.
- Other sources: **public international law**, **federal statutes**, and **customary law**.
- **Case law** of the Federal Supreme Court plays a very significant role (though not a formal source).

1. Federal Constitution of 1999 (Nachführung)

- The old Constitution of 1874 had become confusing and incoherent
- 'Verfassungsreform im Baukastensystem' -- modular constitutional reform:
 - > **Package 1**: Updated coherent text ('Nachführung') -- approved 18 April 1999, in force 1 January 2000
 - > **Package 2**: Reform of direct democracy instruments -- approved 2003
 - > **Package 3**: Reform of judicial system -- approved 2000
 - > Revenue-sharing reform between Federation and cantons: 2004

Structure of the Federal Constitution

Section	Articles
Preamble	--
Title 1: General Provisions	Art. 1-6
Title 2: Fundamental Rights, Citizenship	Art. 7-41
Title 3: Confederation, Cantons, Communes	Art. 42-135
Title 4: The People and the Cantons	Art. 136-142
Title 5: Federal Authorities	Art. 143-191c
Title 6: Revision & Transitional	Art. 192-197

2. Other Sources

2.1 Public International Law

- Main sources (Art. 38 ICJ Statute): international treaties, customs, general principles of law
- Key treaties of constitutional dimension: **ECHR**, **ICCPR**, **ICESCR**, Convention against Torture, Convention on the Rights of the Child
 - International conventions and treaties become **applicable and binding after states' ratification**
 - Switzerland follows a **monistic approach**: international law is part of the domestic legal order without need for incorporation
 - Contrast: **Dualist approach** (UK, Germany) requires domestic legislation to incorporate international law
 - Only **self-executing provisions** can be directly relied on by individuals in courts (must directly regulate rights/duties and be sufficiently clear)

Customary International Law vs. *Ius Cogens*

- **Customary international law**: unwritten principles requiring (1) continuous and coherent practice, (2) **opinio iuris** (belief practice is a legal obligation), (3) a lacuna in written law

- **Chain:** vital rules of customary international law + opinio iuris => **ius cogens** => **erga omnes/inter omnes effect**
- **General principles of law** recognized by civilized nations (fairness, justice, good faith, impartiality of judges) also serve as PIL sources
- **Judicial decisions and legal scholarship** serve as subsidiary means for determining rules of law

Examples: Customary International Law

- Prohibition of execution of offenders under the age of 18 at the time of their crime
- Immunity of visiting foreign heads of state

Examples: Ius Cogens (Peremptory Norms)

- Prohibition of torture
- Prohibition of crimes against humanity
- Prohibition of genocide
- Prohibition of human trafficking
- Prohibition of slavery
- **Non-refoulement principle:** prohibition of returning persons to a state where they face persecution or torture

Exercise Case: Tamil Asylum Seeker (2013)

In 2013, Switzerland deported a Tamil asylum seeker to Sri Lanka where he was arrested and severely mistreated. An international court found TWO principles of ius cogens violated: (1) the non-refoulement principle (by Switzerland) and (2) the prohibition of torture (by Sri Lanka).

2.2 Federal Statutes

- Federal statutes covering matters of constitutional importance belong to the substantive constitution
- Cover matters such as **citizenship, political rights, activities of federal authorities**
- Key statutes:
 - > Federal Act of 20 June 2014 on Swiss Citizenship (**SCA**)
 - > Federal Act of 17 December 1976 on Political Rights (**PRA**)
 - > Federal Act of 13 December 2002 on the Federal Assembly (**ParIA**)
 - > Organization of the Government and the Administration (**GAOA**)
 - > Federal Act of 17 June 2005 on the Federal Supreme Court (**FSCA**), SR 173.110

2.3 Customary Law

- Unwritten principles such as **good faith** are examples of customary law
- Three conditions: (1) continuous, uninterrupted practice; (2) **opinio iuris** (belief practice is legally required); (3) a **lacuna** (gap) in written law
- Since 1999 Constitution encompasses most unwritten principles, customary law plays a **negligible role**

2.4 Case Law

- Case law of the Federal Supreme Court plays a **significant role**, although it is **not a formal source** of constitutional law
- Swiss judicial decisions are **only binding on the court whose decision has been overruled**; not binding upon other courts (even other panels of the Federal Supreme Court)

- This is **different from the Common Law system** where precedent is binding (stare decisis)
- However, Federal Supreme Court precedents play a **very significant role** due to textual indeterminacy of constitutional provisions

Role in Developing Constitutional Law

- The court may first **acknowledge unwritten fundamental rights**; if it does so regularly, these rights may later be **introduced into the Constitution**
 - > Examples: personal liberty, freedom of opinion, freedom of assembly
- The court may **derive other rights from constitutional provisions**, e.g., guarantee of equality before the law
=> fundamental procedural rights
 - > Example: right to legal assistance for people who lack the necessary means
- Under the 1874 Constitution, the Court derived fundamental procedural rights from equality (right to be heard, legal assistance, protection against arbitrariness)
- These unwritten rights were later codified in the 1999 Constitution

CHAPTER D: CONSTITUTIONAL INTERPRETATION (Overview)

Remember

- Constitutional interpretation is a **complex procedure** considering wording, systematic context, historical background, and purpose.
- Swiss courts follow **pluralism of methods** -- no single method has priority.
- Legal texts must be **interpreted** to establish meaning; there is often more than one correct interpretation
- Any application of law is a **creative act**; courts contribute to policy-making
- Constitutional norms are frequently abstract -- normative openness defers important determinations to interpreters
- The Federal Supreme Court applies the same methodological rules as for sub-constitutional law (BGE 139 II 243)

Four Methods of Interpretation

- **1. Grammatical:** ordinary meaning of words, technical terms, three official languages carry equal weight (Art. 70 para. 1 Cst)
- **2. Systematic:** norm interpreted in light of its context (external structure and internal value system)
- **3. Historical:** meaning at the time of creation (subjective intent of drafters vs. objective meaning at enactment)
- **4. Teleological:** purpose ('telos') of the norm; values and goals the provision aims to achieve

Additional Interpretation Principles

- **Pluralism of methods** ('Methodenpluralismus'): no hierarchy; the court considers all approaches and combines them
- **Interpretation in conformity with the Constitution** ('verfassungskonforme Auslegung'): among possible interpretations, prefer the one consistent with constitutional values (Art. 49 para. 1 Cst)
- **Interpretation in conformity with international law** ('volkerrechtskonforme Auslegung'): interpret domestic law to conform with international obligations (especially ECHR)

Exercise: Applying Interpretation Methods

Practice applying all four methods to the following constitutional articles:

- Art. 10a Cst (Prohibition of face-veiling)
- Art. 18 Cst (Freedom of language)
- Art. 36 Cst (Restrictions of fundamental rights)

KEY ABBREVIATIONS

- **Cst** = Federal Constitution of the Swiss Confederation (18 April 1999)
- **ECHR** = European Convention on Human Rights
- **ECtHR** = European Court of Human Rights
- **ICCPR** = International Covenant on Civil and Political Rights
- **ICESCR** = International Covenant on Economic, Social and Cultural Rights
- **ParlA** = Parliament Act
- **PRA** = Political Rights Act
- **SCA** = Swiss Citizenship Act
- **FSCA** = Federal Supreme Court Act
- **GAOA** = Government and Administration Organization Act
- **PubA** = Publications Act
- **SR** = Classified Compilation of Federal Legislation
- **BGE** = Official Compilation of Federal Supreme Court Decisions
- **BBI** = Federal Gazette